Fiscal Impact Statement

Legislative Council Staff

Nonpartisan Services for Colorado's Legislature

PROPOSITION 134: MALE AND FEMALE PARTICIPATION IN SCHOOL AND COLLEGIATE SPORTS

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Summary Information

Overview. The measure requires that K-12 and collegiate sports be designated as male, female, or coeducational and limits participation based on the participants' biological sex.

Types of impacts. The measure is projected to affect the following areas:

- Minimal State Workload
- School District

Disclaimer. This fiscal impact statement has been prepared for a statewide ballot measure appearing at the 2026 statewide election. Any appropriations required to implement this measure will be addressed through the annual or supplemental budget process if this measure is approved by voters. For more information about this measure, please see the ballot information booklet.

Table 1
State Fiscal Impacts

Type of Impact	Current Year FY 2026-27	Budget Year FY 2027-28
State Revenue	$0	$0
State Expenditures	$0	$0
Transferred Funds	$0	$0
Change in TABOR Refunds	$0	$0
Change in State FTE	0.0 FTE	0.0 FTE

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Summary of Measure

Effective January 1, 2027, the measure requires that any school-based team or sport be explicitly designated as being:

- for biological males only;
- for biological females only; or
- coeducational or mixed.

Under the measure, students must compete on teams that match their biological sex or on a coeducational team. Biological females are allowed to participate on a team or sport designated for biological males if there is no equivalent female team offered for that sport. Participation on a coeducational or mixed team or sport is open to all. In addition, the measure prohibits any government entity, licensing or accrediting organization, or athletic association from investigating or penalizing a school for designating a team or sport as being only for biological females.

The governing body of each school must adopt a policy to implement the measure. If the Commissioner of Education determines that a school district has intentionally refused to comply, the Commissioner must notify the district and provide reasonable time to comply. If the district does not comply and has not made a good faith attempt to comply, the Commissioner must take remedial action within their existing authority.

State Expenditures

The measure increases workload and costs for enforcement in the Colorado Department of Education if school districts are intentionally out of compliance with the measure and the Commissioner is required to take remedial action. The fiscal note assumes that most school districts will comply with the measure and that enforcement costs will be minimal. Costs may include staff to handle complaints and conduct investigations, and costs for legal services provided by the Department of Law. If any additional costs for enforcement are required, they will be requested through the annual budget process.

In addition, state institutions of higher education will have increased costs to adopt or update policies for all interscholastic or intramural athletics programs. The fiscal note assumes that any costs will be covered by institutional revenue, such as tuition, fees, or athletic department revenue. No change in state appropriations is required.

School Districts

The measure will increase expenditures for schools, school districts, and charter schools that offer interscholastic or intramural athletic athletics programs to update policies. These costs are expected to be minimal. To the extent the Colorado Department of Education takes remedial action against school districts, legal or other costs may also increase for school districts.

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Effective Date

If approved by voters at the 2026 general election, this measure takes effect January 1, 2027.

State and Local Government Contacts

Education

Higher Education

Law